

CHAPTER 26.

An Act to amend the Law with respect to Bonds given by persons to whom administration is granted.

[22nd July 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Amendments
of law with
respect to
bonds given by
administration
20 & 21 Vict.
c. 77.

1.—(1) The bond required under section eighty-one of Court of Probate Act, 1857, to be given by a person to whom a grant of administration has been committed may, during any vacancy in the office of President of the Probate, Divorce and Admiralty division of the High Court, be given to a registrar of the principal probate registry.

(2) The powers of a district registrar under the said Act to require sureties to such a bond, and to reduce the amount of such a bond, and to limit the liability of a surety shall be exercisable in the case of a grant of administration from the principal probate registry by a registrar of that registry.

(3) An application for the assignment of such a bond to some person in order to enable him to sue on it may be made to a registrar of the principal probate registry on summons.

(4) For the purpose of carrying out the provisions hereinbefore contained, the sections of the said Act mentioned in the first column of the Schedule to this Act shall have effect, subject to the amendments therein specified in the second column of that schedule.

Short title.

2. This Act may be cited as the Grant of Administration (Bonds) Act, 1919.

SCHEDULE.

Section 1.

AMENDMENTS OF COURT OF PROBATE ACT, 1857.

Section.

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| 81 | After the words "judge of the Court of Probate" there shall be inserted the words "or in the case of a vacancy in that office to a registrar of the principal Probate Registry", and for the words "in the case of a grant from the district registry the district registrar" there shall be substituted the words "a registrar". |
| 82 | For the words "district registrar," wherever they occur, there shall be substituted the words "a registrar". |
| 83 | For the words "motion or petition in a summary way", there shall be substituted the word "summons", the words "order one of the registrars of the court to" shall be omitted, and after the words "judge of the court" there shall be inserted the words "or a registrar". |